



File No.: EXP202411531

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on April 18, 2024, by A.A.A. (hereinafter, the complainant) before this Agency against the D.G. OF THE GUARDIA CIVIL (hereinafter, the respondent) for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), applicable to the processing of the present complaint, in accordance with Article 52.2 of LO 7/2021, the following has been established:

FACTS

FIRST: The complainant exercised the right of access against the respondent without their request having received the legally established response. The complainant states that the Territorial Management of Social Services of León has initiated a file for the abandonment of minors. They indicate that, in the administrative file that the Court of Instruction No. 11 of León has transferred to them, there is a report issued by the D.G. of the Guardia Civil (respondent) that contains erroneous, inaccurate, or false data.

On January 24, 2024, the respondent submitted a document to exercise the right of access to the databases that were used to issue the report, without this right of access being satisfactorily addressed by the respondent.

SECOND: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on July 18, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, indicating essentially that due to an administrative error, the request had not been received in time, but that once received, a response had been given by sending the requested information to the complainant by certified mail.

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LEGAL GROUNDS

I

Competence

The Presidency of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints submitted to the Spanish Agency for Data Protection, consisting of forwarding them to the data protection delegates designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze said complaints and respond to them within one month, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to prove that they had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

On August 19, 2024, for the purposes provided for in Article 64.2 of the LOPDGDD, the complaint was admitted for processing. This admission agreement determines the opening of the present procedure

for lack of attention to a request for the exercise of the right established in Article 22 and of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After that period, the interested party may consider their complaint accepted.”

II

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of said regulation. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing.

The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

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The communication addressed to the interested party regarding their request must be expressed in a concise, intelligible manner, easily accessible, and with clear and simple language for all individuals, including those with disabilities.

III

Right of Access

In accordance with the provisions of Article 22 of LO 7/2021, "1. The interested party has the right to obtain confirmation from the data controller as to whether or not personal data concerning them is being processed. If processing is confirmed, the interested party has the right to access such personal data, as well as the following information:

- a) The purposes and legal basis for the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data has been disclosed, in particular, recipients located in countries that are not members of the European Union or international organizations.
- d) The retention period for the personal data, when possible, or, if not, the criteria used to determine that period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the interested party or the limitation of its processing.
- f) The right to lodge a complaint with the competent data protection authority and their contact details.
- g) The communication of the personal data being processed, as well as any available information about its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the controller processes a large amount of information concerning the interested party and they exercise their right of access without specifying whether it refers to all or part of the data, the controller may require the interested party to specify the request within ten days.

3. The right of access shall be deemed granted if the data controller provides the interested party with a remote, direct, and secure system that permanently guarantees access to all their personal data. The notification informing the interested party of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in paragraph 1, the interested party has the right to request it.

4. When the interested party chooses a means other than that offered which incurs a disproportionate cost, the request will be considered excessive, and the interested party will bear the excess cost that their choice entails. In this case, the data controller is only required to ensure that the satisfaction of

the right of access through the proposed means occurs without undue delay. If the interested party does not bear the excess cost, access will be provided through the means initially proposed by the data controller."

For its part, Article 20.6 of LO 7/2021 states:

"When the data controller has reasonable doubts about the identity of the natural person making the request referred to in Articles 22 and 23, they shall request that the individual provide the additional information necessary to confirm their identity within ten days. If this information is not provided within that period, the request will be considered withdrawn by means of a reasoned resolution. The period referred to in paragraph 4 shall begin to run from the date on which the additional information is provided."

IV

Conclusion

During the processing of this procedure, the entity being claimed has responded to this Agency, informing it of the submission of the information requested by the complainant. However, it does not prove to have addressed the request made by the complainant, sending them the required response to their request.

Thus, it cannot be accepted that the response to be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for failing to adequately address the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that must be issued by the controllers, even in cases where there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of the request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the complainant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that the provisions of Article 22 of LO 7/2021 have been infringed and to urge D.G. DE LA GUARDIA CIVIL with NIF S2816003D, to do so within ten working days.

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Following the notification of this resolution, send to the claimant a certification addressing the requested right or denying it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution may constitute an infringement of Article 58.m) of LO 7/2021, which will be sanctioned in accordance with Article 77 of LOPDGDD.

SECOND: NOTIFY this resolution to A.A.A. and to D.G. OF THE GUARDIA CIVIL.

In accordance with the provisions of Article 50 of LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of LOPDGDD, and in accordance with the provisions of Article 123 of LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National

Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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